

Conditional Waiver and Release on Progress Payment

Form 1 of 4 · Takes effect only when the payment described below has cleared

YOUR COMPANY

ADDRESS

PHONE · LICENSE NO.

PARTIES AND PROJECT

the customer is whoever contracted with the claimant

CLAIMANT (YOU)	CUSTOMER (WHO HIRED YOU)	OWNER OF THE PROPERTY	PROJECT / PROPERTY
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PAYMENT

the progress payment this waiver covers

THROUGH DATE	PAYMENT AMOUNT	PAID BY (MAKER OF CHECK)	REFERENCE (APPLICATION / CHECK NO.)
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WAIVER AND RELEASE

On receipt by the claimant of a check from the customer named above in the payment amount stated above, payable to the claimant, and when the check has been properly endorsed and has been paid by the bank on which it is drawn, this document becomes effective to release any mechanics lien, stop payment notice or payment bond right the claimant has on the job of the owner named above, located at the project stated above, to the following extent.

This release covers a progress payment for labor, services, equipment or materials furnished to the customer through the through date stated above only, and does not cover any retention, any pending change orders or extras, any disputed items, or any labor, services, equipment or materials furnished after that date, as listed under exceptions below. Before any recipient of this document relies on it, that person should verify evidence of payment to the claimant.

EXCEPTIONS — THIS DOCUMENT DOES NOT AFFECT

rights the claimant keeps after signing

RETENTION WITHHELD	PENDING CHANGE ORDERS / EXTRAS	DISPUTED CLAIMS	FURNISHED AFTER THE THROUGH DATE
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DESCRIPTION OF EXCEPTIONS — change order numbers, amounts and status; disputed items

CLAIMANT'S SIGNATURE

sign with the pay application; effective when the payment clears

SIGNATURE	PRINTED NAME AND TITLE	COMPANY	DATE
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NOTARY ACKNOWLEDGMENT — OPTIONAL UNLESS YOUR CONTRACT OR STATE REQUIRES IT

State of _____ County of _____
Subscribed and sworn to (or affirmed) before me on this _____ day of _____, 20____, by the person signing above, personally known to me or identified by satisfactory evidence.

NOTARY PUBLIC — SIGNATURE	PRINTED NAME	COMMISSION EXPIRES
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General form for use where no statutory lien waiver form is prescribed. Twelve states prescribe the form and wording of lien waivers by statute — California, Texas, Arizona, Nevada, Utah, Georgia, Florida, Massachusetts, Michigan, Missouri, Mississippi and Wyoming — and a waiver on this form may be ineffective there; use the form in the statute or from the state agency and verify it is the current version. Not legal advice. Lien law, notice deadlines and waiver rules differ by state; have a construction attorney licensed in the project's state review before relying on this form.

Unconditional Waiver and Release on Progress Payment

Form 2 of 4 · Takes effect when signed — sign only after the payment has cleared your account

YOUR COMPANY

ADDRESS

PHONE · LICENSE NO.

PARTIES AND PROJECT

the customer is whoever contracted with the claimant

CLAIMANT (YOU)	CUSTOMER (WHO HIRED YOU)	OWNER OF THE PROPERTY	PROJECT / PROPERTY
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PAYMENT

the progress payment this waiver covers

THROUGH DATE	PAYMENT AMOUNT	PAID BY (MAKER OF CHECK)	REFERENCE (APPLICATION / CHECK NO.)
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WAIVER AND RELEASE

The claimant has been paid and has received a progress payment in the payment amount stated above for labor, services, equipment or materials furnished to the customer named above on the job of the owner named above, located at the project stated above, and does hereby release any mechanics lien, stop payment notice or payment bond right the claimant has on the job to the following extent.

This release covers a progress payment for all labor, services, equipment or materials furnished to the customer through the through date stated above only, and does not cover any retention, any pending change orders or extras, any disputed items, or any labor, services, equipment or materials furnished after that date, as listed under exceptions below.

NOTICE TO CLAIMANT: This document waives and releases lien, stop payment notice and payment bond rights unconditionally and states that you have been paid for giving up those rights. It is enforceable against you if you sign it, even if you have not been paid. If you have not been paid, use a conditional waiver and release form.

EXCEPTIONS — THIS DOCUMENT DOES NOT AFFECT

rights the claimant keeps after signing

RETENTION WITHHELD	PENDING CHANGE ORDERS / EXTRAS	DISPUTED CLAIMS	FURNISHED AFTER THE THROUGH DATE
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DESCRIPTION OF EXCEPTIONS — change order numbers, amounts and status; disputed items

CLAIMANT'S SIGNATURE

sign only after the payment has cleared your account

SIGNATURE	PRINTED NAME AND TITLE	COMPANY	DATE
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NOTARY ACKNOWLEDGMENT — OPTIONAL UNLESS YOUR CONTRACT OR STATE REQUIRES IT

State of _____ County of _____

Subscribed and sworn to (or affirmed) before me on this _____ day of _____, 20____, by the person signing above, personally known to me or identified by satisfactory evidence.

NOTARY PUBLIC — SIGNATURE

PRINTED NAME

COMMISSION EXPIRES

General form for use where no statutory lien waiver form is prescribed. Twelve states prescribe the form and wording of lien waivers by statute — California, Texas, Arizona, Nevada, Utah, Georgia, Florida, Massachusetts, Michigan, Missouri, Mississippi and Wyoming — and a waiver on this form may be ineffective there; use the form in the statute or from the state agency and verify it is the current version. Not legal advice. Lien law, notice deadlines and waiver rules differ by state; have a construction attorney licensed in the project's state review before relying on this form.

Conditional Waiver and Release on Final Payment

Form 3 of 4 · Takes effect only when the final payment described below has cleared

YOUR COMPANY

ADDRESS

PHONE · LICENSE NO.

PARTIES AND PROJECT

the customer is whoever contracted with the claimant

CLAIMANT (YOU)	CUSTOMER (WHO HIRED YOU)	OWNER OF THE PROPERTY	PROJECT / PROPERTY
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PAYMENT

the final payment, retention included

THROUGH DATE	PAYMENT AMOUNT	PAID BY (MAKER OF CHECK)	REFERENCE (APPLICATION / CHECK NO.)
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WAIVER AND RELEASE

On receipt by the claimant of a check from the customer named above in the payment amount stated above, payable to the claimant, and when the check has been properly endorsed and has been paid by the bank on which it is drawn, this document becomes effective to release any mechanics lien, stop payment notice or payment bond right the claimant has on the job of the owner named above, located at the project stated above.

This release covers the final payment to the claimant for all labor, services, equipment or materials furnished on the job, including all retention, except for the disputed claims for additional work listed under exceptions below. Before any recipient of this document relies on it, that person should verify evidence of payment to the claimant.

EXCEPTIONS — THIS DOCUMENT DOES NOT AFFECT

list disputed extras or write none

DISPUTED CLAIMS FOR ADDITIONAL WORK	OTHER (CONTRACT WARRANTY AND INDEMNITY OBLIGATIONS SURVIVE)
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DESCRIPTION OF EXCEPTIONS — change order numbers, amounts and status; disputed items

CLAIMANT'S SIGNATURE

sign with the pay application; effective when the payment clears

SIGNATURE	PRINTED NAME AND TITLE	COMPANY	DATE
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NOTARY ACKNOWLEDGMENT — OPTIONAL UNLESS YOUR CONTRACT OR STATE REQUIRES IT

State of _____ County of _____
Subscribed and sworn to (or affirmed) before me on this _____ day of _____, 20____, by the person signing above, personally known to me or identified by satisfactory evidence.

NOTARY PUBLIC — SIGNATURE	PRINTED NAME	COMMISSION EXPIRES
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General form for use where no statutory lien waiver form is prescribed. Twelve states prescribe the form and wording of lien waivers by statute — California, Texas, Arizona, Nevada, Utah, Georgia, Florida, Massachusetts, Michigan, Missouri, Mississippi and Wyoming — and a waiver on this form may be ineffective there; use the form in the statute or from the state agency and verify it is the current version. Not legal advice. Lien law, notice deadlines and waiver rules differ by state; have a construction attorney licensed in the project's state review before relying on this form.

Unconditional Waiver and Release on Final Payment

Form 4 of 4 · Takes effect when signed — sign only after every dollar, retention included, has cleared

YOUR COMPANY

ADDRESS

PHONE · LICENSE NO.

PARTIES AND PROJECT

the customer is whoever contracted with the claimant

CLAIMANT (YOU)	CUSTOMER (WHO HIRED YOU)	OWNER OF THE PROPERTY	PROJECT / PROPERTY
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PAYMENT

the final payment, retention included

THROUGH DATE	PAYMENT AMOUNT	PAID BY (MAKER OF CHECK)	REFERENCE (APPLICATION / CHECK NO.)
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WAIVER AND RELEASE

The claimant has been paid in full for all labor, services, equipment or materials furnished to the customer named above on the job of the owner named above, located at the project stated above, including all retention, and does hereby waive and release any right to a mechanics lien, stop payment notice or any right against a payment bond on the job, except for the disputed claims for additional work listed under exceptions below.

The claimant further represents that it has paid, or will pay from the proceeds of this payment, every subcontractor, supplier and laborer who furnished labor, services, equipment or materials to the claimant for this job.

NOTICE TO CLAIMANT: This document waives and releases lien, stop payment notice and payment bond rights unconditionally and states that you have been paid for giving up those rights. It is enforceable against you if you sign it, even if you have not been paid. If you have not been paid, use a conditional waiver and release form.

EXCEPTIONS — THIS DOCUMENT DOES NOT AFFECT

list disputed extras or write none

DISPUTED CLAIMS FOR ADDITIONAL WORK	OTHER (CONTRACT WARRANTY AND INDEMNITY OBLIGATIONS SURVIVE)
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DESCRIPTION OF EXCEPTIONS — change order numbers, amounts and status; disputed items

CLAIMANT'S SIGNATURE

sign only after the payment has cleared your account

SIGNATURE	PRINTED NAME AND TITLE	COMPANY	DATE
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NOTARY ACKNOWLEDGMENT — OPTIONAL UNLESS YOUR CONTRACT OR STATE REQUIRES IT
State of _____ County of _____
Subscribed and sworn to (or affirmed) before me on this _____ day of _____, 20____, by the person signing above, personally known to me or identified by satisfactory evidence.

NOTARY PUBLIC — SIGNATURE _____ PRINTED NAME _____ COMMISSION EXPIRES _____

General form for use where no statutory lien waiver form is prescribed. Twelve states prescribe the form and wording of lien waivers by statute — California, Texas, Arizona, Nevada, Utah, Georgia, Florida, Massachusetts, Michigan, Missouri, Mississippi and Wyoming — and a waiver on this form may be ineffective there; use the form in the statute or from the state agency and verify it is the current version. Not legal advice. Lien law, notice deadlines and waiver rules differ by state; have a construction attorney licensed in the project's state review before relying on this form.